



CHAPTER 21

An Act to enable Her Majesty to withdraw personal diplomatic immunities from members of the diplomatic missions of certain foreign sovereign Powers and their families; and to exclude citizens of the United Kingdom and Colonies from the enjoyment of such immunities.

[21st December, 1955]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) If it appears to Her Majesty that the personal immunities conferred by law on the envoys of foreign sovereign Powers accredited to Her Majesty, their families and servants, and members of the official staff of such envoys and their families, exceed in any respect those accorded in the territory of any such Power to an envoy of Her Majesty and persons similarly connected with him, Her Majesty may by Order in Council withdraw the said personal immunities in the case of that Power, to such extent and in respect of such classes of persons as appears to Her Majesty to be proper.

Reciprocal
withdrawal
of personal
immunities.

(2) An Order in Council under this section may be varied or revoked by a subsequent Order in Council.

(3) Any statutory instrument containing an Order in Council under this section shall be subject to annulment in pursuance of a resolution of either House of Parliament.

2.—(1) Subject to the provisions of this section, no person being a citizen of the United Kingdom and Colonies shall be entitled to any such personal immunities as are mentioned in section one of this Act.

Exclusion of
personal
immunities in
case of citizens
of U.K. and
Colonies.

(2) This section shall not affect any immunity enjoyed by any person by virtue of an office or employment in respect of which he was accepted on behalf of Her Majesty at any time before the passing of this Act.

Interpretation
and saving.

3.—(1) In this Act “personal immunities” means immunity from suit or legal process (except in respect of things done or omitted to be done in the course of the performance of official duties) and inviolability of residence.

11 & 12 Geo. 6.
c. 56.

(2) Nothing in this Act, or in any Order in Council made thereunder, shall affect the operation of any enactment which confers or makes provision for conferring on any class of persons immunities corresponding with any such personal immunities as are mentioned in section one of this Act; and any such Order in Council shall be disregarded for the purposes of paragraph (a) of the proviso to section four of the British Nationality Act, 1948 (which relates to the citizenship of the children of certain persons possessing immunity from suit and legal process).

Short title.

4. This Act may be cited as the Diplomatic Immunities Restriction Act, 1955.

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